

(36)

Tentative Ruling

Re: ***Esquivel v. Fresno Unified School District***
Superior Court Case No. 24CECG01001

Hearing Date: August 26, 2026 (Dept. 502)

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To deny without prejudice. In the event that oral argument is requested minor is excused from appearing.

Explanation:

Petitioner requests for the minor's settlement balance of \$10,815, to be placed in a CalABLE account. Petitioner indicates that the deposit of the funds into a CalABLE account would allow her to access the settlement funds as needed to care for the minor, without being calculated as income for the purpose of the minor's state-issued benefits.

While the court agrees that a CalABLE account appears to protect the minor's eligibility for public benefits programs, petitioner does not make a sufficient showing that access to the settlement funds prior to the minor reaching age 18, would be in his best interest. Especially where it is represented that the minor has fully recovered from the injuries, the court prefers the settlement amount be held in some manner that will prevent withdrawal until the minor attains age 18, for example, in a blocked account or structured settlement, unless there are overriding reason for not doing so.

In petitioner's supplemental declaration, she indicates the unavailability of a blocked account. She does not discuss why a structured settlement would not be feasible.

To the extent petitioner intends to seek a special needs trust, the court generally approves of this arrangement, since this will ensure that receipt of this money will not disqualify the minor from receiving the public benefits he may need due to his disabilities. However, petitioner must show that she has first filed, with the Probate Department, a Petition under Probate Code sections 3600-3613 to establish and fund the special needs trust. The Probate Court is better suited to confirm that the Trust complies with California Rules of Court, Rule 7.903, to ensure that the notice required by Probate Code section 3611, subdivision (c) is given, and to provide for the ongoing court supervision of the trust.

Once the probate petition has been granted, petitioner can then petition this court for approval of the compromise of the disabled adult's claim.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

